



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE EXPELLED AND AT-RISK STUDENT SERVICES GRANT PROGRAM

1 CCR 301-43

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.0 Statement of Basis and Purpose for Adoption of Rules.

- 1.1 The statutory basis for these Rules is § 22-33-205(2), C.R.S., Services for Expelled Students - Grants - Criteria. Statute requires the State Board of Education (state board) to promulgate rules to implement the grant program, including the application timeline, application requirements, and criteria for determining awards.

2.0 Eligibility

- 2.1 Eligible applicants for the Expelled and At-Risk Student Services Grant Program (grant) include school districts, charter schools, alternative education campuses (AECs) within school districts, nonpublic schools, boards of cooperative services (BOCES), and facility schools.

2.01(a) Nonpublic schools may apply for a grant only to fund educational services that have been approved by the state board pursuant to section 22-2-107(1)(s), C.R.S.

3.0 Application Timeline and Procedures

- 3.1 The Department of Education (department) shall annually post the application for funding under the grant on its website.
- 3.2 To be eligible for funding, applicants shall submit an application for the grant by a deadline specified by the department.
- 3.3 The department will annually make recommendations for funding to the state board, and the state board shall award funds.

4.0 Application Requirements

Applications for funding under the grant program must include the following items.

- 4.1 The number of students at the applicant school or district during the school year preceding the school year who:
- 4.01(a) were expelled, as defined in section 22-33-203(2), C.R.S., from applicant district or school during the school year preceding the school year for which the grant is requested;
- 4.01(b) were identified as at risk of dropping out of school due to chronic absenteeism or disciplinary action as identified in section 22-33-202(1), C.R.S.; and/or
- 4.01(c) were identified as truant pursuant to sections 22-33-107(3) and 22-33-108(5), C.R.S.

- 4.2** The applicant's plan to provide educational services, attendance supports, and behavior interventions. The plan must address:
- 4.02(a) disproportionate discipline practices, chronic absenteeism, and alternatives to suspension and expulsion; and
 - 4.02(b) effective attendance and discipline systems, which may include multi-tiered systems of support, positive behavior intervention models, or restorative justice practices as described in section 22-32-144, C.R.S.;
- 4.3** A description of the supports and services to be provided, including the number of students served and how the effectiveness of the supports and services will be determined and measured;
- 4.4** The training and technical assistance provided to ensure the effective implementation of supports, services, and programming, which may include equity, diversity, and inclusion training;
- 4.5** The cost of the services to be provided under the plan and the overall funding requested;

5.0 Grant Criteria

The department and the state board shall use the following criteria in making recommendations for and awarding funding under the grant program.

- 5.1** The quality of student supports and services provided under the applicant's plan and the likelihood that the plan will achieve its intended results, including:
- 5.01(a) increasing academic success;
 - 5.01(b) reducing chronic absenteeism;
 - 5.01(c) decreasing conduct and discipline code violations;
 - 5.01(d) increasing age-appropriate and developmentally appropriate discipline methods; and
 - 5.01(e) increasing student and family engagement;
- 5.2** The number of expelled, at-risk, or chronically absent students who are receiving attendance and behavior interventions and educational services through the applicant under agreements entered into pursuant to the provisions of section 22-33-204, C.R.S., during the school year preceding the year for which the grant is requested;
- 5.3** The cost-effectiveness of the plan, including the amount of funding requested by the applicant in relation to the cost of the supports and services to be provided under the applicant's plan;
- 5.4** The cost-effectiveness and quality of the services that the applicant will provide under the plan to employees who support students at risk of dropping out of school due to chronic absenteeism or disciplinary action, pursuant to section 22-33-204(1.5), C.R.S.;
- 5.5** If the applicant is seeking to renew a grant or has been awarded a grant pursuant to this section in the previous five years, the demonstrated effectiveness of services funded by the previous grant; and
- 5.6** The need for services in rural, suburban, and urban communities.

6.0 Reporting

6.1 Grantees shall submit information related to the effectiveness of the grant program to the department on an annual basis, including:

- 6.01(a) academic measures, such as reduction in course failure, increase in grade point average, and accrual for credits at the high school level;
- 6.01(b) attendance measures, such as increased attendance rates and reductions in chronic absenteeism;
- 6.01(c) behavior and discipline measures, such as a decline in classroom removal, suspensions, and expulsion; a decrease in exclusionary discipline actions; and a reduction in referrals to law enforcement, arrests, and ticketing;
- 6.01(d) student engagement measures, such as student and parent engagement with the services provided in the plan, participation in programs and activities, and the number of students and families served by grant-funded services;
- 6.01(e) efficacy of services and supports that address disproportionate discipline rates and the creation of age-appropriate and developmentally appropriate discipline systems;
- 6.01(f) effectiveness of training and technical assistance provided by the grant funds; and
- 6.01(g) any other information specified by the department in order for the department to meet the reporting obligations under Section 22-33-205(4), C.R.S.

Editor's Notes

History

Entire rule eff. 04/14/2022.